

**E Roz** <evanroz@gmail.com>

Fwd:1 message

Evan Rosner <evanroz@gmail.com>

Mon, Feb 5, 2024 at 9:22 PM

To: "Maclean, David" <david.maclean@gov.mb.ca>, jewelsl24@yahoo.com, Kodi Gilchrist <kodig@shaw.ca>

Hello David,

Julie Laube and Kodi Gilchrist are residents at 4-585 Corydon ave. I have included them in this email.

They have been residents here since February 1st of 2022 and they were not provided with the storage unit despite a unit existing that was clearly marked #4 correlated with their suite. Storage was not included in their lease agreement but the Landlord has attempted to persuade me that the unit I have has been provided as a 'courtesy' to me which has been subsequently recognized as a service provided as they have since given me notice that they are withdrawing the service of storage unit and I will be receiving a rent decrease based on this, This should be extended to Julie Laube and Kodi Gilchrist as they were denied the service on the basis of avoiding following RTB protocol that would have resulted in necessitating rent decrease. The amount owing to them should reflect month by month cost since Feb 2021 or 24 months of service denied.

Please note that my charge is that Thorwin Properties has practiced deception and fraud in denying Julie Laube and Kodi Gilchrist access to the storage locker in order to deceitfully avoid following RTB procedure which should result in rent decrease.

The landlord has engaged in lies and exploitation of both tenant and RTB and this must be addressed as soon as possible.

Julie Laube +1 (204) 894-3558

All the best,
Evan Rosner



On Mon, Feb 5, 2024 at 12:34 PM Maclean, David
<David.Maclean@gov.mb.ca> wrote:

Good afternoon Evan;

Thank you for your response, I do appreciate it. It is responses like these that enable the Branch to make an informed, just decision regarding the services that are being removed and the amount of the rent that should be reduced to balance out these services.

Before I get to the more pressing issue I wanted to let you know how the Branch determines the cost of storage and laundry. For storage; research is done to find something similar to the dimensions you have, and close to your home. For laundry we generally think 3 loads of laundry per week is average/fair and then calculate the dollar amount of what it would cost you to go to a laundromat.

Current issue.

Unfortunately I couldn't access the video you showed me, I am assuming its because of our security firewall protocols. I believe our system does accept.mov files but I couldn't open the ones you sent.

I did have a reply from the property manager who advised me that they have booked a cleaner to attend the building this week to ensure the area is clean and accessible. The Branch though cannot stop the landlord from doing the renovations; only advising them that they must ensure you have access to the services until May 1, 2024. If your items are damaged because of the landlord's negligence (either due to the dust or security) then you have the right to file a claim through our Branch for compensation. A hearing would be scheduled at which point a hearing officer would make a decision regarding your claim.

The Branch will be investigating the withdrawal of services for the other units but on an individual unit basis.

Please let me know if you are unable to access the laundry/storage due to the drilling so I can follow up with the property manager.

Thank you

David Maclean

Residential Tenancies Officer

Residential Tenancies Branch

200-155 Carlton St

Winnipeg, MB R3C 3H8

Phone: 204-945-2484

Fax: 204-945-6273